

BEFORE THE MISSISSIPPI ETHICS COMMISSION

BRANDI M. DABBS

COMPLAINANT

VS.

OPEN MEETINGS CASE NO. M-25-022

**BOARD OF TRUSTEES,
TISHOMINGO COUNTY SCHOOL DISTRICT**

RESPONDENT

ORDER OF DISMISSAL

This matter came before the Ethics Commission through an Open Meetings Complaint filed by Brandi M. Dabbs against the Board of Trustees for the Tishomingo County School District (the "board"). The board filed a response by and through its attorney. The Ethics Commission has jurisdiction over this matter pursuant to Section 25-41-15, Miss. Code of 1972. The hearing officer presented a Recommendation of Dismissal to the Ethics Commission at its regular meeting held on May 8, 2026, at which time the Commission approved this Order of Dismissal in accordance with Rule 4.6, Rules of the Mississippi Ethics Commission.

I. FINDINGS OF FACT

1.1 Brandi M. Dabbs alleges the Board of Trustees for the Tishomingo County School District violated the Open Meetings Act by failing to post its minutes online. Her complaint states:

I have been serving as a free special needs advocate for multiple parents at the TCSD since April 2025. In that time, it has been abundantly clear that the TCSD school board does not want anyone to have access to the board meeting minutes, unless they want said person to see them. The minutes are kept under a specific weblink requiring a password and the only ones that have access to read the minutes (or have an account and password) are the school board members and possibly the superintendent (the parents and faculty members cannot get clarity on who all has access to the minutes besides the board members). You can find the login page on the TCSD website at <https://oagendas.com/meeting/tcsk>. Every meeting's limited agenda is available, but no minutes are without login.

This complaint does not challenge the Board's authority to make staffing decisions. In addition to that, when the board members do post them it is on their personal "Facebook" social media profiles. Sometimes Jessica Seaton emails the minutes to certain campus teachers, but which campuses get them from month to month is at her discretion. This has been confirmed by multiple faculty members to me directly. I am including screen captures of the website, the website's login page for the board members for evidence. I have also included two prior posts of Ms. Seaton's and another school board member, Stacy Stepp's, personal Facebook pages. Not everyone has Facebook accounts. This is not a reliable form of sharing the minutes for all to access. This violates the Open Records Act of Mississippi. The only minutes that should be private are closed session meetings. A public school does not have the right to keep tax payers behind a password protected wall. Please have

the school and school board correct this immediately. There are decisions being made about the school, the children, grant money both state and federal that are not accessible by the public that may be unable to attend the meetings.

1.2 In support of her complaint, Ms. Dabbs attached screenshots of board members posting the board's agendas (not minutes) to their personal Facebook pages prior or contemporaneously to the board's meeting.

1.3 In response, the board denies violating the Open Meetings Act and confirms that the board does not post its minutes online. The board states that the district's policy (BCBH) states, in relevant part:

Minutes shall be kept on file in the office of the superintendent and open to public inspection during regular business hours.

1.4 The response further states: "To the District's knowledge, Ms. Dabbs has never inquired what the policy is for board minutes. Further, the District is unaware of any request made by Ms. Dabbs for copies of board minutes, which would have been provided as per policy."

II. CONCLUSIONS OF LAW

2.1 "The Open Meetings Act was enacted for the benefit of the public and is to be construed liberally in favor of the public." Board of Trustees of State Insts. of Higher Learning v. Miss. Publishers Corp., 478 So.2d 269, 276 (Miss. 1985). "However inconvenient openness may be to some, it is the legislatively decreed public policy of this state." Mayor & Aldermen of Vicksburg v. Vicksburg Printing & Pub., 434 So.2d 1333, 1336 (Miss.1983).

2.2 Section 25-41-11 of the Open Meetings Act requires public bodies to keep accurate minutes of all meetings and requires that "minutes shall be recorded within a reasonable time not to exceed thirty (30) days after recess or adjournment and shall be open to public inspection during regular business hours." That is, the Open Meetings Act requires minutes of public bodies be recorded within thirty days after the meeting and be available for public inspection during a public body's regular business hours. However, the Open Meetings Act does not require minutes be posted online.

WHEREFORE, the complaint is hereby dismissed this the 8th day of May 2026.

MISSISSIPPI ETHICS COMMISSION

BY: _____
Tom Hood, Executive Director